EMERGENCY PROVISIONS

THREE EMERGENCIES AND CONSTITUTIONAL → ARTICLE 352 TRIGGER, APPROVAL → DECLARATION AND AMENDMENT CHRONOLOGY → NATIONAL EMERGENCY EFFECTS ON → ARTICLES 358 AND 359 → ADM JABALPUR (1976), KHANNA

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

★ PRIMARY CORE FLOW · ⊙ SUBORDINATE EXTRA · ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g4 and all prior artifacts unchanged

00

STAGE 00 — THREE EMERGENCIES AND CONSTITUTIONAL PURPOSE

THREE EMERGENCIES AND CONSTITUTIONAL PURPOSE · PART XVIII · ARTICLES 352-360 · 352 NATIONAL SECURITY · 356 STATE CONSTITUTIONAL BREAKDOWN · 360 FINANCIAL STABILITY · METHOD TRIGGER · WRITTEN ADVICE/MATERIAL

CONSTITUTIONAL BASIS / ARTICLE

- PART XVIII: ARTICLES 352-360
- 352 national security
- 356 State constitutional breakdown

POWER / PROCEDURE

- 360 financial stability
- METHOD trigger → written advice/material → parliamentary control → duration → effects → exit
- Emergency power preserves constitutional government; it is not an extra-constitutional regime.

CHECK / LIMIT

- MUST REMEMBER: Teach Articles 352-360 as three different regimes with exact triggers,
- approval periods, renewal, revocation, maximum duration, federal effects and rights consequences
- Articles 358 and 359 must never be merged.

FEDERAL / RIGHTS IMPACT

- 360 financial stability

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 358 and 359 must never be merged.

01

STAGE 01 — ARTICLE 352 TRIGGER, APPROVAL, RENEWAL AND REVOCATION

ARTICLE 352 TRIGGER, APPROVAL, RENEWAL AND REVOCATION · EXTERNAL AGGRESSION · ARMED REBELLION · IMMINENT DANGER · CABINET DECISION IN WRITING · WHOLE OR PART OF INDIA · BOTH HOUSES WITHIN ONE MONTH · SPECIAL MAJORITY

TRIGGER: war → external aggression → armed rebellion → imminent danger → Cabinet decision in writing → President → whole or part of India

CONSTITUTIONAL BASIS / ARTICLE

- TRIGGER: war
- external aggression
- armed rebellion

POWER / PROCEDURE

- imminent danger
- Cabinet decision in writing → President → whole or part of India
- APPROVAL: both Houses within one month → special majority

CHECK / LIMIT

- CONTINUANCE: six-month blocks → same special majority
- EXIT: President revokes; Lok Sabha simple-majority disapproval requires revocation
- One-tenth of Lok Sabha members can require a special sitting within 14 days.

FEDERAL / RIGHTS IMPACT

- imminent danger

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: One-tenth of Lok Sabha members can require a special sitting within 14 days.

02

STAGE 02 — DECLARATION AND AMENDMENT CHRONOLOGY WITH CURRENT STATUS

DECLARATION AND AMENDMENT CHRONOLOGY WITH CURRENT STATUS · 1962 EXTERNAL AGGRESSION · REVOKED 1968 · 1971 EXTERNAL AGGRESSION · CONTINUED ALONGSIDE 1975 PROCLAMATION · 1975 INTERNAL DISTURBANCE · REVOKED 1977 · ATTEMPTED SATISFACTION IMMUNITY

1962 external aggression → revoked 1968 → 1971 external aggression → continued alongside 1975 proclamation → 1975 internal disturbance → revoked 1977 → 38TH: attempted satisfaction immunity → 42ND: territorial and wider-effect changes

CONSTITUTIONAL BASIS / ARTICLE

- 1962 external aggression → revoked 1968
- 1971 external aggression → continued alongside 1975 proclamation

POWER / PROCEDURE

- 1975 internal disturbance → revoked 1977
- 38TH: attempted satisfaction immunity

CHECK / LIMIT

- 42ND: territorial and wider-effect changes
- 44TH: armed rebellion, Cabinet writing, special majority, liberty and review

FEDERAL / RIGHTS IMPACT

- CURRENT 28 AUG 2026: no National Emergency is in force.
- 1962 external aggression → revoked 1968

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CURRENT 28 AUG 2026: no National Emergency is in force.

03

STAGE 03 — NATIONAL EMERGENCY EFFECTS ON FEDERALISM AND INSTITUTIONS

NATIONAL EMERGENCY EFFECTS ON FEDERALISM AND INSTITUTIONS · ARTICLE 353 · UNION DIRECTIONS EXPAND; PARLIAMENT GAINS STATE-FIELD COMPETENCE · ARTICLE 250 LAWS · SIX-MONTH TAIL AFTER EMERGENCY · ARTICLE 354 · TEMPORARY REVENUE-DISTRIBUTION ORDER WITH FINANCIAL-YEAR LIMIT · LOK SABHA

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 353: Union directions expand; Parliament gains State-field competence
- ARTICLE 250 laws → six-month tail after Emergency

POWER / PROCEDURE

- ARTICLE 354 → temporary revenue-distribution order with financial-year limit
- LOK SABHA / ASSEMBLY TERMS → Parliament may extend one year at a time

CHECK / LIMIT

- States, legislatures and High Courts continue: temporary Union weighting, not abolition.
- ARTICLE 353: Union directions expand; Parliament gains State-field competence

FEDERAL / RIGHTS IMPACT

- ARTICLE 250 laws → six-month tail after Emergency
- ARTICLE 354 → temporary revenue-distribution order with financial-year limit

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: States, legislatures and High Courts continue: temporary Union weighting, not abolition.

04

STAGE 04 — ARTICLES 358 AND 359 RIGHTS FIREWALL

ARTICLES 358 AND 359 RIGHTS FIREWALL · ARTICLE 358 AUTOMATIC · ARTICLE 19 ONLY · WAR/EXTERNAL AGGRESSION · EMERGENCY-RELATED RECITAL/ACTION · ARTICLE 359 PRESIDENTIAL ORDER · NAMED RIGHTS' COURT-ENFORCEMENT ROUTE · STATED AREA/PERIOD

ARTICLE 358 automatic	Article 19 only	war/external aggression	emergency-related recital/action
ARTICLE 359 presidential order	named rights' court-enforcement route	stated area/period	

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 358 automatic
- Article 19 only
- war/external aggression

POWER / PROCEDURE

- emergency-related recital/action
- ARTICLE 359 presidential order
- named rights' court-enforcement route

CHECK / LIMIT

- stated area/period
- PERMANENT FIREWALL
- Articles 20 and 21 remain enforceable; unrelated illegality gets no emergency shield.

FEDERAL / RIGHTS IMPACT

- emergency-related recital/action

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 20 and 21 remain enforceable; unrelated illegality gets no emergency shield.

05

STAGE 05 — ADM JABALPUR (1976), KHANNA AND K.S. PUTTASWAMY (2017)

ADM JABALPUR (1976), KHANNA AND K.S. PUTTASWAMY (2017) · ADM JABALPUR (1976) MAJORITY DENIED HABEAS ENFORCEMENT ROUTE DURING · JUSTICE H.R. KHANNA · LIBERTY IS NOT EXECUTIVE GRACE · 44TH AMENDMENT · ARTICLES 20 AND 21 EXCLUDED FROM ARTICLE 359 · K.S. K.S. PUTTASWAMY (2017) · ADM JABALPUR (1976) MAJORITY WRONGLY DECIDED AND OVERRULED

ADM JABALPUR (1976) MAJORITY denied habeas enforcement route during the operative Article 359 order → JUSTICE H.R. KHANNA — liberty is not executive grace → 44TH AMENDMENT — Articles 20 and 21 excluded from Article 359 → K.S. K.S. PUTTASWAMY (2017) — ADM Jabalpur (1976) majority wrongly decided and overruled → Historical warning, not current law.

CONSTITUTIONAL BASIS / ARTICLE

- ADM JABALPUR (1976) MAJORITY denied habeas enforcement route during the operative Article 359 order
- JUSTICE H.R. KHANNA — liberty is not executive grace

POWER / PROCEDURE

- 44TH AMENDMENT → Articles 20 and 21 excluded from Article 359
- K.S. K.S. PUTTASWAMY (2017) → ADM Jabalpur (1976) majority wrongly decided and overruled

CHECK / LIMIT

- Historical warning, not current law.
- CLOSE DISTINCTION: The 44th Amendment replaced internal disturbance with armed rebellion, requires written Cabinet advice, protects Articles 20

FEDERAL / RIGHTS IMPACT

- Article 356 still has its own six-month approval cycle.
- ADM JABALPUR (1976) MAJORITY denied habeas enforcement route during the operative Article 359 order

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: The 44th Amendment replaced internal disturbance with armed rebellion, requires written Cabinet advice, protects Articles 20 and 21, narrows Article 358 to war/external aggression and creates the Lok Sabha revocation route; Article 356 still has its own six-month approval cycle.

06

STAGE 06 — PRESIDENT'S RULE MECHANICS AND CONSEQUENCES

PRESIDENT'S RULE MECHANICS AND CONSEQUENCES · ARTICLE 356 · GOVERNOR REPORT OR OTHERWISE · OBJECTIVE MATERIAL · TWO MONTHS, SIMPLE MAJORITY · SIX MONTHS · THREE YEARS · BEYOND ONE YEAR

ARTICLE 356: Governor report or otherwise → objective material → proclamation → APPROVAL: two months, simple majority → renewal: six months → maximum: three years → BEYOND ONE YEAR: qualifying Article 352 Emergency + ECI certification

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 356: Governor report or otherwise → objective material → proclamation
- APPROVAL: two months, simple majority

POWER / PROCEDURE

- renewal: six months
- maximum: three years

CHECK / LIMIT

- BEYOND ONE YEAR: qualifying Article 352 Emergency + ECI certification
- ARTICLE 357: Parliament may confer and permit delegation of State legislative power

FEDERAL / RIGHTS IMPACT

- Executive assumed; Assembly suspended/dissolved; High Court and Fundamental Rights continue
- Article 365 may supply material, never an automatic trigger.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 365 may supply material, never an automatic trigger.

07

STAGE 07 — S.R. BOMMAI (1994), RAMESHWAR PRASAD (2006) AND CURRENT ARTICLE 356 CONTROL

S.R. BOMMAI (1994), RAMESHWAR PRASAD (2006) AND CURRENT ARTICLE · S.R. BOMMAI (1994) REVIEW · RELEVANT MATERIAL · FLOOR TEST · DISSOLUTION AFTER APPROVAL · RAMESHWAR PRASAD (2006) · BIHAR DISSOLUTION INVALID; ASSEMBLY NOT RESTORED BECAUSE ELECTION PROCESS · WHY USE DECLINED COURTS + COALITIONS + REGIONAL PARTIES

CONSTITUTIONAL BASIS / ARTICLE

- S.R. BOMMAI (1994) review
- relevant material

POWER / PROCEDURE

- floor test
- dissolution after approval

CHECK / LIMIT

- RAMESHWAR PRASAD (2006)
- Bihar dissolution invalid; Assembly not restored because election process had advanced

FEDERAL / RIGHTS IMPACT

- WHY USE DECLINED courts + coalitions + regional parties + Sarkaria/Punchhi norms
- CURRENT: Manipur President's Rule 13 Feb 2025 → revoked 4 Feb 2026.

MECHANISM / VERDICT — CURRENT: Manipur President's Rule 13 Feb 2025 → revoked 4 Feb 2026.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Manipur President's Rule 13 Feb 2025 → revoked 4 Feb 2026.

08

STAGE 08 — ARTICLE 360 FINANCIAL EMERGENCY

ARTICLE 360 FINANCIAL EMERGENCY · FINANCIAL STABILITY OR CREDIT OF INDIA OR ANY PART · BOTH HOUSES WITHIN TWO MONTHS BY SIMPLE MAJORITY · NO PERIODIC RENEWAL; PRESIDENT MAY REVOKE · FINANCIAL PROPRIETY · SALARY REDUCTIONS · STATE MONEY/FINANCIAL BILLS RESERVED · UNION SALARY DIRECTION CAN INCLUDE SUPREME COURT AND HIGH

CONSTITUTIONAL BASIS / ARTICLE

- TRIGGER: financial stability or credit of India or any part threatened
- APPROVAL: both Houses within two months by simple majority

POWER / PROCEDURE

- DURATION: no periodic renewal; President may revoke
- DIRECTIONS: financial propriety

CHECK / LIMIT

- salary reductions
- State Money/financial Bills reserved

FEDERAL / RIGHTS IMPACT

- Union salary direction can include Supreme Court and High Court judges
- STATUS: never proclaimed; 1991 was managed without Article 360.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS: never proclaimed; 1991 was managed without Article 360.

09

STAGE 09 — THREE-WAY COMPARISON AND LAST-RESORT ALTERNATIVES

THREE-WAY COMPARISON AND LAST-RESORT ALTERNATIVES · SPECIAL MAJORITY · SIX-MONTH RENEWAL · NATIONAL/FEDERAL/RIGHTS EFFECTS · SIMPLE MAJORITY · THREE-YEAR MAXIMUM · STATE MACHINERY · NO RENEWAL CYCLE

352: special majority	six-month renewal	national/federal/rights effects	
356: simple majority	six-month renewal	three-year maximum	State machinery
360: simple majority	no renewal cycle	financial directions	

CONSTITUTIONAL BASIS / ARTICLE

- 352: special majority
- six-month renewal
- national/federal/rights effects

POWER / PROCEDURE

- 356: simple majority
- three-year maximum
- State machinery

CHECK / LIMIT

- 360: simple majority
- no renewal cycle
- financial directions

FEDERAL / RIGHTS IMPACT

- ESCALATION LADDER warning → consultation → floor test/court → targeted ordinary law → Emergency
- Sarkaria and Punchhi recommendations guide restraint but are not binding law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Sarkaria and Punchhi recommendations guide restraint but are not binding law.

10

STAGE 10 — SIX PYQS AND PRELIMS FIREWALLS

SIX PYQS AND PRELIMS FIREWALLS · PYQ ROUTES · 2018 FINANCIAL EMERGENCY + ARTICLE 356 CONSEQUENCES · 2020 CENTRALISING LEGISLATION · 2023 ARTICLE 355/DETENTION/POTA + ARTICLE 356 DECLINE · 2024 CONSTITUTION-PART IDENTIFICATION · FIREWALLS ARMED REBELLION · INTERNAL DISTURBANCE

PYQ ROUTES

2018 Financial Emergency + Article 356 consequences → 2020 centralising legislation → 2023 Article 355/detention/POTA + Article 356 decline

CONSTITUTIONAL BASIS / ARTICLE

- PYQ ROUTES
- 2018 Financial Emergency + Article 356 consequences
- 2020 centralising legislation

POWER / PROCEDURE

- 2023 Article 355/detention/POTA + Article 356 decline
- 2024 Constitution-Part identification
- FIREWALLS armed rebellion != internal disturbance

CHECK / LIMIT

- 358 != 359
- 20/21 protected
- 352 special majority

FEDERAL / RIGHTS IMPACT

- 356/360 simple
- 360 never used
- High Court not assumed.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 352 special majority | 356/360 simple | 360 never used | High Court not assumed.

11

STAGE 11 — MARKS-SCALED ANSWER SPINE AND QUALIFIED VERDICT

MARKS-SCALED ANSWER SPINE AND QUALIFIED VERDICT · 10 MARKS · 15 MARKS · LEGAL FACTORS · POLITICAL FACTORS · 20 MARKS · 352 + RIGHTS + 356 + 360 · GRADED CONCLUSION

10 MARKS: provision → trigger → procedure → effects → status/verdict → 15 MARKS: thesis → legal factors → political factors → case/commission → verdict → 20 MARKS: 352 + rights + 356 + 360 → safeguards → limits → graded → EVIDENCE CHAIN claim → Article/amendment → mechanism → case/history → qualification → VERDICT: emergency is legitimate temporary constitutional self-defence only when reviewable and directed toward restoration of ordinary

CONSTITUTIONAL BASIS / ARTICLE

- 10 MARKS: provision → trigger → procedure → effects → status/verdict
- 15 MARKS: thesis → legal factors → political factors → case/commission → verdict
- 20 MARKS: 352 + rights + 356 + 360 → safeguards → limits → graded conclusion

POWER / PROCEDURE

- EVIDENCE CHAIN claim → Article/amendment → mechanism → case/history → qualification
- VERDICT: emergency is legitimate temporary constitutional self-defence only when reviewable and directed toward restoration of ordinary democratic government.
- LEGAL/SOURCE LIMIT: As of 5 September 2026 no National or Financial Emergency was located in force.

CHECK / LIMIT

- The Gazette proclamation of 4 February 2026 revoked the Manipur Article 356 proclamation
- retain S.R.
- S.R. Bommai (1994) review and floor-test discipline without converting every political crisis into constitutional breakdown.

FEDERAL / RIGHTS IMPACT

- EVIDENCE CHAIN claim → Article/amendment → mechanism → case/history → qualification

MECHANISM / VERDICT — VERDICT: emergency is legitimate temporary constitutional self-defence only when reviewable and directed toward restoration of ordinary democratic government.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: emergency is legitimate temporary constitutional self-defence only when reviewable and directed toward restoration of ordinary democratic government.

E

EXTRA — SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · 16. SAFETY-VALVE VERSUS CONSTITUTIONAL DICTATORSHIP - OPTIONAL · 17. CONSTITUTIONAL DICTATORSHIP AS A DESIGN PROBLEM - OPTIONAL · [ANALYSIS] BOTH SIDES ARE PARTLY CORRECT · A CONSTITUTION NEEDS CRISIS CAPACITY, BUT · UNCHECKED CRISIS POWER CAN DESTROY THE ORDER IT CLAIMS · [ANALYSIS] THE MODERN ANSWER SHOULD JUDGE THE PROVISIONS TOGETHER · EMERGENCY POWER CONCENTRATES AUTHORITY TEMPORARILY UNDER LEGAL FORMS.

OPTIONAL DOCTRINE / CASE

- 16. Safety-valve versus constitutional dictatorship - optional
- 17. Constitutional dictatorship as a design problem - optional
- [ANALYSIS] Both sides are partly correct: a Constitution needs crisis capacity, but
- unchecked crisis power can destroy the order it claims to preserve.

ADVANCED LIMIT

- [ANALYSIS] The modern answer should judge the provisions together with 44th Amendment safeguards, judicial review and political federalism.
- Emergency power concentrates authority temporarily under legal forms.
- The risk is normalisation: crisis standards may become ordinary governance.
- Procedural safeguards, sunset/renewal, reasons, parliamentary opposition, judicial access and protected rights prevent normalisation.

COMPARATIVE NUANCE

- India's strongest design choice is not merely special-majority approval but non-suspendable Articles 20 and 21.
- The remaining weakness is information asymmetry: Parliament and courts depend on executive material concerning threat and State breakdown.
- Safety-valve versus constitutional dictatorship - optional | Critic/defender | Argument use | |---|---| H.V. Kamath | Risk of totalitarian/police State | | K.T.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels